

## 25CHCV00039 25CHCV00039

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Dept. F43

Hearing Date: 07-23-26

Case # 25CHCV00039, Fabian, et  
al. v. Joers, et al.

Trial Date: 08-07-28

MOTIONS TO COMPEL

RESPONSES TO REQUESTS FOR PRODUCTION, FORM INTERROGATORIES, AND SPECIAL  
INTERROGATORIES AND TO DEEM REQUESTS FOR ADMISSION AS TRUE AND ADMITTED

MOVING PARTY: Plaintiff Omar Morales

RESPONDING PARTY: Defense counsel Shelby L. Clark

RELIEF REQUESTED

Order compelling defendant John Carl Joers to  
serve verified responses to plaintiff Morales's first sets of requests for  
production, form interrogatories, and special interrogatories and to impose  
monetary sanctions of \$1,197.50 against defendant Joers and his counsel of  
record for each motion.

Order plaintiff Morales's first set of  
requests for admission to defendant John Carl Joers as true and admitted and  
imposing \$1,197.50 in monetary sanctions against Joers and his counsel Shelby

Clark with Hinshaw & Culbertson, LLP.

RULING: Motions for the form interrogatories, special interrogatories, and requests for production are granted. Motion for the requests for admission is continued to allow defendant Joers to serve objection-free, verified responses. The court awards plaintiff Morales \$3,115 in monetary sanctions.

#### SUMMARY OF ACTION

The personal injury arises from a motor vehicle collision in which defendant John Carl Joers rear-ended plaintiffs Estela Yadhira Fabian and Omar Morales. Plaintiffs allege defendant Joers was driving a vehicle owned by defendant McLogan Supply Co., Inc. and acting within the scope of his employment with McLogan Supply. On January 6, 2025, Plaintiffs filed a complaint against both defendants, asserting negligence, vicarious liability, and negligent entrustment. McLogan Supply Co. answered on March 24, 2025, and Joers answered on November 6, 2025.

Plaintiff Omar Morales electronically served defendant Joers with his first sets of requests for production, form interrogatories, special interrogatories, and requests for admission on April 7, 2026. (Declarations of Taylor Scott Kruse, Exhs. 1, 2 [listing email addresses for attorney Clark, Candice Cromer, and RLR Cases of Hinshaw & Culbertson, LLP].) Responses were due by May 11, 2026, and plaintiff Morales granted an extension to May 15, 2026, to serve objection-only responses. No responses were served.

On June 10, 2026, plaintiff Morales filed motions to compel defendant Joers's objection-free responses to his first sets of requests for production, form interrogatories, and special interrogatories and a motion to deem the requests for admission as true and admitted. Plaintiff Morales also seeks to impose monetary sanctions of \$4,790 (\$1,197.50 per motion) against defendant Joers and his counsel of record, Shelby Clark and Hinshaw & Culbertson, LLP.

Attorney Shelby Clark filed an opposing declaration on July 17, 2026.

(Declaration of Shelby L. Clark.)

Mr. Clark claims he was unaware his firm was responsible for the

discovery requests until July 16, 2026, because defendants' insurer stated it was transferring defendants' representation to different counsel, but the transfer was never completed.

## ANALYSIS

### A. Compelling

#### Discovery Responses and Deeming Requests for Admission As True and Admitted

A demanding party may move to compel responses to requests for production where the responding party fails to provide any responses. (Code Civ. Proc., §§ 2031.300, subd. (b), 2030.290, subd. (b).)

The demanding party must show the requests were properly served, that the time to respond expired, and no response has been served. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 403-404.) The responding party must respond separately to each demand by agreeing to comply, stating an inability to comply, or objecting to all or part of the demand.

(Code Civ. Proc., § 2031.210, subd. (a).) The responding party must serve responses within 30 days after the requests for production are served or according to an agreed upon deadline extension. (Code Civ. Proc., § 2031.260, subd. (a)(1)-(3).)

Failing to respond within these time limits waives objections. (Code Civ. Proc., § 2030.290, subd. (a).)

A propounding party may move to compel responses to form or special interrogatories where the responding party fails to provide any responses. (Code Civ. Proc., § 2030.290, subd. (b).) The propounding party must show the interrogatories were properly served, that the time to respond expired, and no response has been served.

(*Leach v. Superior Court* (1980) 111 Cal.App.3d 902, 905-906.) Unless excused by a protective order, the responding party must serve responses (an answer, objection, or election to allow inspecting or copy records) within 30 days after the interrogatories are served or according to an agreed upon deadline extension. (Code Civ. Proc., §§ 2030.210, subd. (a), 2030.270.) Failing to respond within these time limits waives objections.

(Code Civ. Proc., § 2030.290, subd. (a).)

When a responding party fails to timely serve answers to

requests for admission, the demanding party may move for an order that “the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for a monetary sanction.” (Code Civ. Proc., § 2033.280, subd.

(b).) Responses to requests for admissions are due 30 days from the date the requests were served on the responding party. (Code Civ. Proc., § 2033.250, subd. (a).) Failure to respond within 30 days or a deadline set by the parties waives any objection, including those based on privilege or work product protection. (Code Civ. Proc § 2033.280, subd. (a).)

The moving papers demonstrate plaintiff Morales properly served his discovery requests on who he believed represented defendant Joers in April of 2026. But Defendant Joers never served responses by the original deadline or the deadline extension.

Defense counsel Clark’s opposing declaration fails to provide a substantial justification for failing to provide responses or an update on the transfer counsel. Mr. Clark claims that on February 19, 2026, both he and attorney Robert L. Reisinger received an email from defendants’ insurance carrier, transferring the case to new counsel. (Declaration of Shelby L. Clark ¶ 2, Exh. A.) Mr. Clark’s firm promptly initiated the transfer. (Id.) According to Mr. Clark, plaintiffs’ counsel knew about the transfer no later than March 16, 2026. (Id. ¶ 3, Exh. B.) Around that same time, plaintiffs’ medical examinations were tentatively set for March 24, 2026. (Id. ¶ 4.)

When plaintiff Morales’s discovery was served, Mr. Clark believed the transfer to new counsel had been completed, and the legal assistant who was assigned to complete the transfer had returned to her prior assignment within the firm. (Clark Decl. ¶ 5.) Because of this, Mr. Clark did not realize the Substitution of Attorney form had not been completed or signed. (Id.) Mr. Clark first learned of the incomplete form on May 13, 2026, and followed up with staff to ensure its completion. (Id. ¶ 6.) The court notes that no such form has been filed.

An objection to a notice of deposition was served over Mr. Clark’s signature on June 19, 2026, but the document had been reviewed by another attorney, not Mr. Clark, and Mr. Clark did not realize the

transfer was not complete. (Clark Decl.

¶ 7.) Mr. Clark then went on vacation

from June 26, 2026 through July 6, 2026, and was unaware of any communications concerning the case transfer. (Id.

¶ 8.) It was only on July 16, 2026, that

Mr. Clark realized the transfer had not been completed and discovery remained his firm's responsibility. (Id. ¶

9.) Mr. Clark claims he believed his

firm was only carbon copied on the discovery responses and he never received a phone call from plaintiffs' counsel concerning the lack of response and the instant motions.

Although the evidence demonstrates

plaintiffs' counsel knew of the intent to transfer to different defense counsel, Mr. Clark does not dispute receiving the discovery requests and the extension email from plaintiffs' counsel.

Nor does the Clark Declaration indicate whether the name of the new case manager was provided to counsel. Both

the motion and the extension email were sent before Mr. Clark went on vacation. Moreover, a review of the May

12, 2026, extension email indicates the email was sent to Mr. Clark, with plaintiffs' counsel carbon copying others from his firm. The court notes Mr. Clark first learned about the incomplete Substitution form on May 13, 2026. If Mr. Clark learned the form remained incomplete the day after plaintiffs' counsel sent the extension email, it is unclear why Mr. Clark did not check to ensure whether other communications concerning this matter had slipped through the cracks. Finally, Mr. Clark fails to state how he learned about the outstanding discovery in this matter on July 16, 2026, or state when discovery responses will be served.

Because the court finds defense counsel fails to provide

a substantial justification for failing to serve responses to discovery before plaintiff Morales filed his motions, the court grants plaintiff Morales's

motions to compel defendant John Carl Joers's responses to his first sets of requests for production, form interrogatories, and special interrogatories. Defendant John Carl Coers is ordered to serve objection-free, verified responses within 30 days of the issuing of this order.

On plaintiff Morales's requests for admissions motion,

the court will allow defendant Joers to serve objection-free, verified

responses within 20 days of the issuing of this order. Defendant Joers must also file with the court a copy of the responses and proof of serving the responses within 20 days of

the issuing of this order. Failure to comply with the court's order will result in the admissions being deemed as true and admitted.

#### B. Sanctions

Plaintiff Morales asks the court to impose \$4,790 in monetary sanctions against defendant Joers and his counsel of record, Shelby Clark with Hinshaw & Culbertson, LLP, jointly and severally. (Kruse Decls. [seeking \$1,197.50 per motion].)

The court must impose sanctions against a party or attorney, or both, who unsuccessfully makes or opposes a motion to compel responses to interrogatories or requests for production, unless the court finds that the sanctioned party "acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., §§ 2030.290, subd. (c), 2031.300, subd. (c).) The court must impose sanctions against the party or attorney, or both, whose failure to serve timely responses led to a motion to deem requests for admissions admitted, unless the court finds that the responding party served code-compliant proposed responses to the requests before the motion hearing. (Code Civ. Proc., § 2033.280, subd. (c).)

Plaintiff Morales is entitled to sanctions for the reasons stated above in Section A.

Plaintiff's counsel charges \$650 per hour. (Kruse RFP Decl. ¶ 11(a); Kruse FROG Decl. ¶ 7(a); Kruse SROG Decl. ¶ 11(a); Kruse RFA Decl. ¶ 7(a).)

The requests for production motion seeks: 1.5 hours preparing the motion; 1.0 hour reviewing and replying to the opposition; 1.0 hour preparing for and attending the motion hearing; and a \$60 filing fee.  
(Kruse RFP Decl. ¶ 11(a)-(e).)

The request actually totals \$2,335.

The form interrogatories motion seeks: 0.75 hours preparing the motion; 0.5 hours reviewing and replying to the opposition; 0.5 hours preparing for and attending the motion hearing; and a \$60 filing fee.  
(Kruse FROG Decl. ¶ 7(a)-(e).)

The special interrogatories motion seeks: 0.75 hours preparing the motion; 0.5 hours

reviewing and replying to the opposition; 0.5 hours preparing for and attending the motion hearing; and a \$60 filing fee.  
(Kruse SROG Decl. ¶ 11(a)-(e).)

The requests for admission motion seeks: 0.75 hours preparing the motion; 0.5 hours reviewing and replying to the opposition; 0.5 hours preparing for and attending the motion hearing; and a \$60 filing fee.  
(Kruse RFA Decl. ¶ 7(a)-(e).)

After reviewing the moving papers, the court finds the hourly rate is unsupported and reduces the rate to \$500 per hour. The court finds the time requested for the request for production motion is unreasonable because the motion is virtually identical to the discovery motions filed by plaintiffs' counsel against defendant Joers. Furthermore, all four motions will be heard at the same hearing.

Therefore, the court awards plaintiff Omar Morales monetary sanctions in the reduced amount of \$3,115: 3.25 hours preparing the motions and supporting papers—\$1,625; 1.0 hour reviewing the opposing declaration—\$500; 1.5 hours preparing for and attending the motion hearing remotely—\$750; and \$240 in filing fees.

## CONCLUSION and ORDER

The court grants plaintiff Omar Morales's motions to compel defendant John Carl Joers's responses to his first sets of requests for production, form interrogatories, and special interrogatories. The court orders defendant Joers to serve code-compliant, objection-free, and verified responses within thirty (30) days of the issuing of this order.

The motion to deem requests for admissions as admitted is continued. The court orders defendant Joers to serve objection-free, verified responses to plaintiff Omar Morales's first set of requests for admission served on defendant John Carl Joers on April 7, 2026, within 20 days of the issuing of this order. Defendant Joers must also file with the court a copy of the responses and proof of serving the responses within 20 days of the issuing of this order. Failure to comply with the court's order will result in the admissions being deemed as true and admitted.

The court awards plaintiff Morales \$3,115 in monetary sanctions. Defendant Joers and his attorney of record are ordered to pay plaintiff's counsel within 30 days of the issuing of order.

Plaintiff Omar Morales to give notice.

Dept. F43

Hearing Date: 07-30-26

Case # 25CHCV00039, Fabian, et al. v. Joers, et al.

Trial Date: 08-07-28

MOTIONS TO COMPEL  
RESPONSES TO REQUESTS FOR PRODUCTION AND DEEM REQUESTS FOR ADMISSION AS TRUE  
AND ADMITTED

MOVING PARTY: Estela Yadhira Fabian

RESPONDING PARTY: Defense Counsel Shelby L. Clark

RELIEF REQUESTED

Order compelling defendant John Carl Joers to serve verified responses to plaintiff Fabian's first set of requests for production of documents and to impose monetary sanctions of \$2,335 against defendant Joers and his counsel of record.

Order deeming plaintiff Fabian's first set of requests for admission to defendant Joers as true and admitted and imposing \$2,335 in monetary sanctions against defendant Joers and his counsel of record.

RULING: Motions for the form interrogatories, special interrogatories, and requests for production are granted. Motion for the requests for admission is continued to allow defendant Joers to serve objection-free, verified responses. The court awards plaintiff Fabian \$2,120 in monetary sanctions.



## SUMMARY OF ACTION

Plaintiffs Estela Yadhira Fabian and Omar

Morales filed this personal injury action against defendants John Carl Joers and McLogan Supply Co., Inc. on January 6, 2025. Plaintiffs allege Joers rearended them while driving a vehicle owned by McLogan Supply while acting within the course and scope of his employment with McLogan Supply.

Plaintiffs assert negligence, vicarious liability, and negligent entrustment. McLogan Supply Co. answered on March 24, 2025, and Joers answered on November 6, 2025.

On April 7, 2026, plaintiff Fabian electronically served defendant Joers with her first sets of requests for production and requests for admission. (Declarations of Taylor Scott Kruse, Exhs. 1.) Responses were due on May 11, 2026, and plaintiff's counsel extended the deadline to serve objection-free responses to May 15, 2026. (Id., Exhs. 2.) No responses were ever served.

On June 10, 2026, plaintiff Fabian filed a motion to compel defendant Joers's objection-free, verified responses to her first set of requests for production and a motion to deem her first set of requests for admission to defendant Joers as true and admitted. Plaintiff Fabian asks the court to impose a total of \$4,670 in monetary sanctions (\$2,335 per motion) against defendant Joers and his counsel of record, Shelby Clark and Hinshaw & Culbertson, LLP. No opposition briefs were filed.

On July 17, 2026, attorney Shelby Clark filed an opposing declaration claiming he believed that defendants' insurer was transferring defendants' representation to other counsel. (Declaration of Shelby L. Clark.) Due to inadvertence the transfer never went through, and Mr. Clark was unaware his firm was responsible for the outstanding discovery requests until July 16, 2026.

## ANALYSIS

### A. Compelling

Responses to Requests for Production and Deeming Requests for Admissions As True and Admitted

A demanding party may move to compel responses to requests for production where the responding party fails to provide any responses. (Code Civ. Proc., §§ 2031.300, subd. (b), 2030.290, subd. (b).)

The demanding party must show the requests were properly served, that the time to respond expired, and no response has been served. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 403-404.) The responding party must respond separately to each demand by agreeing to comply, stating an inability to comply, or objecting to all or part of the demand.

(Code Civ. Proc., § 2031.210, subd. (a).) The responding party must serve responses within 30 days after the requests for production are served or according to an agreed upon deadline extension. (Code Civ. Proc., § 2031.260, subd. (a)(1)-(3).)

Failing to respond within these time limits waives objections. (Code Civ. Proc., § 2030.290, subd. (a).)

When a responding party fails to timely serve answers to requests for admission, the demanding party may move for an order that “the genuineness of any documents and the truth of any matters specified in the request be deemed admitted, as well as for a monetary sanction.” (Code Civ. Proc., § 2033.280, subd. (b).) Responses to requests for admissions are due 30 days from the date the requests were served on the responding party. (Code Civ. Proc., § 2033.250, subd. (a).) Failure to respond within 30 days or a deadline set by the parties waives any objection, including those based on privilege or work product protection. (Code Civ. Proc. § 2033.280, subd. (a).)

The court finds that plaintiff Fabian properly served her requests for production and requests for admission and granted defendant Joers a deadline extension. However, defendant Joers has failed to serve any responses.

Furthermore, defense counsel Clark’s opposing declaration fails to provide a substantial justification for failing to provide responses or an update on the counsel transfer. Mr. Clark claims that on February 19, 2026, both he and attorney Robert L. Reisinger received an email from defendants’ insurance carrier, transferring the case to new counsel. (Clark Decl. ¶ 2, Exh. A.) Mr. Clark’s firm promptly initiated the transfer. (Id.) According to Mr. Clark, plaintiffs’ counsel

knew about the transfer no later than March 16, 2026. (Id. ¶ 3, Exh. B.) Around that same time, plaintiffs' medical examinations were tentatively set for March 24, 2026. (Id. ¶ 4.)

When plaintiff Fabian's discovery was served, Mr. Clark believed the transfer to new counsel had been completed, and the legal assistant who was assigned to complete the transfer had returned to her prior assignment within the firm. (Clark Decl. ¶ 5.) Because of this, Mr. Clark did not realize the Substitution of Attorney form had not been completed or signed. (Id.) Mr. Clark first learned of the incomplete form on May 13, 2026, and followed up with staff to ensure its completion. (Id. ¶ 6.) The court notes that no such form has been filed.

An objection to a notice of deposition was served over Mr. Clark's signature on June 19, 2026, but the document had been reviewed by another attorney, not Mr. Clark, and Mr. Clark did not realize the transfer was not complete. (Clark Decl. ¶ 7.) Mr. Clark then went on vacation from June 26, 2026 through July 6, 2026, and was unaware of any communications concerning the case transfer. (Id. ¶ 8.) It was only on July 16, 2026, that Mr. Clark realized the transfer had not been completed and discovery remained his firm's responsibility. (Id. ¶ 9.) Mr. Clark claims he believed his firm was only carbon copied on the discovery responses and he never received a phone call from plaintiffs' counsel concerning the lack of response and the instant motions.

Although the evidence demonstrates plaintiffs' counsel knew of the intent to transfer to different defense counsel, Mr. Clark does not dispute receiving the discovery requests and the extension email from plaintiffs' counsel. Nor does the Clark Declaration indicate whether the name of the new case manager was provided to counsel. Both the motion and the extension email were sent before Mr. Clark went on vacation. Moreover, a review of the May 12, 2026, extension email indicates the email was sent to Mr. Clark, with plaintiffs' counsel carbon copying others from his firm. The court notes that Mr. Clark first learned about the incomplete Substitution form on May 13, 2026. If Mr. Clark learned the form remained

incomplete the day after plaintiffs' counsel sent the extension email, it is unclear why Mr. Clark did not check to ensure whether other communications concerning this matter had slipped through the cracks. Finally, Mr. Clark fails to state how he learned about the outstanding discovery in this matter on July 16, 2026, or state when discovery responses will be served.

Because the court finds defense counsel fails to provide a substantial justification for not serving responses to discovery before plaintiff Fabian filed her motions, the court grants plaintiff Fabian's motion to compel defendant John Carl Joers's responses to her first set of requests for production. Defendant John Carl Coers is ordered to serve objection-free, verified responses within 30 days of the issuing of this order.

On plaintiff Fabian's requests for admissions motion, the court will allow defendant Joers to serve objection-free, verified responses within 20 days of the issuing of this order. Defendant Joers must also file with the court a copy of the responses and proof of serving the responses within 20 days of the issuing of this order. Failure to comply with the court's order will result in the admissions being deemed as true and admitted.

#### B. Sanctions

Plaintiff Fabian asks the court to impose \$4,670 in monetary sanctions against defendant Joers and his counsel of record, Shelby Clark with Hinshaw & Culbertson, LLP, jointly and severally. (Kruse RFP Decl. ¶¶ 11-12; Kruse RFA Decl. ¶¶ 7-8 [seeking \$2,335 per motion].)

The court must impose sanctions against the party or attorney, or both, who unsuccessfully makes or opposes a motion to compel a response to requests for production, unless the court finds that the sanctioned party "acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc., § 2031.300, subd. (c).) The court must impose sanctions against the party or attorney, or both, whose failure to serve timely responses led to a motion to deem requests for admissions admitted, unless the court finds that the responding party served code-compliant proposed responses to the requests before the motion hearing. (Code Civ. Proc., § 2033.280, subd. (c).)

Plaintiff Fabian is entitled to sanctions for the reasons stated above in Section A.

Plaintiff's counsel charges \$650 per hour. (Kruse RFP Decl. ¶ 11(a); Kruse RFA Decl. ¶ 7(a).) Each request includes: 1.5 hours preparing the motion and supporting papers—\$975; 1.0 hour reviewing and replying to an opposition—\$650; 1.0 hour preparing for and attending the motion hearing remotely—\$650; and a \$60 filing fee.

The court finds the requested hourly rate is excessive and lowers the rate to \$500 per hour.

The court also reduces the time requested because the motions are virtually identical to plaintiff Fabian's previous discovery motions, no reply was filed, and both motions will be heard at the same hearing.

Therefore, the court awards plaintiff Estela Yadhira Fabian monetary sanctions in the reduced amount of \$2,120: 2.0 hours preparing the motion and supporting papers—\$1,000; 1.0 hour reviewing and replying to an opposition—\$500; 1.0 hour preparing for and attending the motion hearing remotely—\$500; and \$120 in filing fees.

#### CONCLUSION and ORDER

The court grants plaintiff Estela Yadhira Fabian's motion to compel defendant John Carl Joers's responses to her first set of requests for production. The court orders defendant Joers to serve code-compliant, objection-free, and verified responses within thirty (30) days of the issuing of this order.

The motion to deem requests for admissions as admitted is continued. The court orders defendant Joers to serve objection-free, verified responses to plaintiff Fabian's first set of requests for admission served on defendant John Carl Joers on April 7, 2026, within 20 days of the issuing of this order. Defendant Joers must also file with the court a copy of the responses and proof of serving the responses within 20 days of the issuing of this order. Failure to comply with the court's order will result in the admissions being deemed as true and admitted.

The court awards plaintiff Fabian \$2,120 in monetary

sanctions. Defendant Joers and his attorney of record are ordered to pay plaintiff's counsel within 30 days of the issuing of order.

Plaintiff Estela Yadhira Fabian to give notice.